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F. Washing Dishes – The Sugya

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In this section, we will continue learning additional details from the *sugya* of נ"ט בר נ"ט, which will help us answer common questions that arise concerning washing *fleishig* and dairy dishes. For example, are you allowed to wash both *fleishig* and dairy dishes in the same sink? What if you accidentally wash a dairy dish in the *fleishig* sink? Do you need separate sponges? Do you need separate dishwashers? We will begin to learn the *sugya* from the earliest sources in the *rishonim* until the modern day *posskim*.

Before the advent of modern kitchens, dishes would be washed by heating up water in a pot and then scrubbing the dishes in that pot. In Jewish homes, there would be a large *fleishig* pot to wash the *fleishig* dishes and a large dairy pot to wash the dairy dishes (similar to *fleishig* and dairy sinks today). The 38) (טור) quotes the ספר התרומה who *passkins* that if you accidentally rinse clean dairy *ben-yomo* utensils in a *fleishig ben-yomo* pot which is on the fire or off the fire but still hot, everything is forbidden; the water, the *fleishig* pot and the dairy utensils. However, if either the pot or the utensils are *eino ben-yomo*, everything is permitted (as will be explained below), unless food residue remains in one of the dishes. The רא"ש argues that if even the dairy utensils and *fleishig* pot are both *ben yomo*, everything is permitted if they are clean. But if one of them is dirty, everything is forbidden.

The S"A in סעיף ג' *passkins* like the רא"ש and explains that when the clean *ben-yomo fleishig* dishes are accidentally<sup>1</sup> rinsed in a clean, *ben-yomo* dairy pot on a fire, everything is permitted because both the meat and dairy flavor in the water are נ"ט בר נ"ט. The meat flavor goes from the meat to the utensils and from the utensils to the water, and the dairy flavor goes from the dairy to the pot and from the pot to the water. When dairy and *fleishig* flavor meet in the water, they are both weakened and do not forbid the water. The S"A points out that if one of the utensils is dirty, everything is forbidden unless there is *shishim* in the water against the food remnants.<sup>2</sup> For example, if there is a bit of meat left on the utensils (and is not *batel b'shishim*), the meat flavor goes directly into the dairy pot and renders it *basar b'chalav*, whereby the water becomes forbidden and then the utensils.

The Rama argues and *passkins* like the ספר התרומה that if both the utensils and the pot are *benei-yoman*, everything is prohibited even when they are clean. The (ט"ז) explains that although the Rama permits נ"ט בר נ"ט in a *bedieved* situation (i.e., the case where dairy was mixed with *parve* food cooked in a *fleishig ben-yomo* pot), here there are two possible reasons why it is worse than נ"ט בר נ"ט. First, if the dairy pot touches the *fleishig* utensils, the flavor from each one goes directly into one another without being weakened in the water. This fusion of strong meat and dairy flavor renders the pot, water and dishes *basar b'chalav*. Second, even if the utensil does not touch the pot, when the *fleishig* flavor leaves the utensils, it immediately meets the dairy flavor from the pot before each flavor is fully weakened,<sup>3</sup> rendering the water *basar b'chalav* and thereby forbidding the utensils and pot.

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<sup>1</sup> See (ש"ך) (ט), who writes that one may not *lechatchilla* wash clean dishes in a pot of the opposite type.

<sup>2</sup> If the clean utensil is *eino ben yomo*, then the other *kli* is permitted.

<sup>3</sup> Similar to נ"ט בר נ"ט בשעת בישול.

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The 39) (ש"י"ת היכל שלמה (עמ' ריג) explains the second reason further that dairy flavor from the pot is only fully weakened a second time in the water (i.e., it only becomes נ"ט בר נ"ט when it is disconnected from the source of the flavor, e.g., when the water is removed from the pot (similar to placing pasta cooked in a *fleishig* pot on a plate) or if the soup cools down. However, as long as the water is connected to the source of the flavor (i.e., the water is still in the hot pot), the flavor is not weakened. When the *fleishig* dishes are added, their strong flavor is also emitted, and a strong fusion of meat and dairy flavor occurs which forbids the water, thereby rendering the pot and utensils *basar b'chalav*.

The (ש"י"ת) (יב) only quotes the second explanation since that is the main one. Accordingly, even if you know the utensils did not touch, everything is still forbidden. The ר"ט stresses that based on this second approach, if you make *parve* soup in a *ben-yomo* dairy pot and you use a *fleishig ben-yomo* ladle, everything is forbidden. Here too, when the *parve* soup is cooking in the dairy pot, at every given moment, the soup is absorbing strong dairy flavor from the pot (the dairy flavor is only fully weakened a second time when it is disconnected from its source, e.g., removing the soup from the pot). Therefore, if you insert a *fleishig ben-yomo* ladle into the pot, the *fleishig* flavor from the ladle mixes with the strong dairy flavor and everything becomes forbidden (unless there is *shishim* in the soup against the ladle).<sup>4</sup>

The *Rama* adds seven additional *halachos* that pertain to the above case of placing a *fleishig* plate into a dairy pot filled with hot water:

- 1) If either the plate or the pot is *eino ben-yomo* (and clean), they are both permitted, but you should throw out the water. The (ט"ז) (ט) explains that the *ben-yomo kli* is permitted because it absorbed only weakened *eino ben-yomo* flavor, and there is no fusion of strong meat and dairy flavor. Similarly, the *eino ben-yomo kli* is permitted because when the stronger *ben-yomo* flavor enters, it meets only weakened *eino ben-yomo* flavor,<sup>5</sup> and therefore, the *ben-yomo* flavor itself gets weakened and cannot forbid the utensil.<sup>6</sup> The (ט"ז) (י) adds that the water is discarded because it contains remnants of *pagum* meat and dairy flavor, and there is no financial loss involved in throwing out water that would just be used for washing and can be easily replaced.
- 2) Just as rinsing *fleishig ben-yomo* utensils in a dairy *ben-yomo* pot prohibits everything, so too, heating up water in a *parve* vat and placing clean *ben-yomo* dairy and *fleishig* utensils into it also forbids everything. The reason, as explained by the (ט"ז) (נ) mentioned above, is that the flavor coming from each utensil and entering the water is not weakened since it is connected to the source of the flavor (i.e., the utensils themselves), so when the strong flavors from each utensil

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<sup>4</sup> We learned above that some allow reheating pasta cooked in a *ben-yomo fleishig* pot in a *ben-yomo* dairy pot. The reason that would be permitted is because the pasta was disconnected from the *fleishig* pot and the meat flavor in it was weakened.

<sup>5</sup> This explanation works for both reasons given in the (ט"ז) (נ), i.e., whether the utensil and pot touched and the flavor went directly from one into the other or the flavor went into the water without weakening (but when it enters the pot it does weaken when not meeting the opposing flavor).

<sup>6</sup> The *Rama* in צד-ה *passkins* that if you place an *eino ben-yomo* dairy ladle into a *fleishig ben-yomo* pot in which *parve* soup is heating up, you need to eat the soup in *fleishig* dishes and *kasher* the *eino ben yomo* ladle. This contradicts what he says here that everything is permitted. The (ש"י"ת) (צד-יח) explains that the *din* of the *Rama* there is only a *chumra* which most *posskim* do not follow. Alternatively, the case there is when the pot is *fleishig eino ben-yomo*, and the spoon is dairy *ben-yomo*, and if you would be allowed to eat the food in *fleishig* dishes, some may erroneously think that a spoon can never forbid a pot. The (ט"ז) (צד-ט) adds that in סימן צד, the *eino ben-yomo kli* needs to be *kasher*ed because the *parve* food is eaten with the same dishes as the *ben-yomo kli*, but here, where the water is thrown out, the *eino ben-yomo kli* does not need to be *kasher*ed.

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meet in the water, the water becomes *basar b'chalav*, thereby forbidding the utensils. (It should be noted that according to the S"A, everything is permitted.)

- 3) If clean dishes are rinsed one after the other in a *parve* vat filled with hot water, they are both permitted because once the first dish is removed, the water is no longer connected to the flavor in the dish and becomes נ"ט בר נ"ט. (However, if the first dish is dirty, leaving residue in the water, the second dish will be forbidden because it absorbs flavor directly from the food – see בדה"ש (סח)).
- 4) If the dishes are washed together in a *kli sheini*, they are both permitted. The (ט"ז) (יב) explains that even if they contain meat and dairy remnants, a *kli sheini* cannot extract flavor from the food and then transfer it into the opposite utensil.<sup>7</sup> (This *pssak* will be especially relevant if dairy dishes fall into a *fleishig* sink filled with water.)
- 5) If you pour hot water cooked in a *ben-yomo fleishig* pot onto a dairy *ben-yomo* dish, the dairy dish is forbidden. The (ט"ז) (יג) explains that since there is a uninterrupted<sup>8</sup> stream from the *fleishig* pot to the dairy dish, the uninterrupted stream of water is not yet considered נ"ט בר נ"ט since it is still connected to the *fleishig* pot. It can only achieve the status of נ"ט בר נ"ט after the water is fully removed from the pot (or cools down). When the stream of hot water hits the dairy plate, the strong meat flavor in the water forbids the plate, similar to placing the plate inside a *fleishig* pot (where strong meat and dairy flavor meet in the water and the plate is forbidden). The (ש"ך) (יח) and (פמ"ג) (משב"ז יג) add that only the bottom plate is forbidden, but not the upper pot, because the dairy flavor cannot travel back up the stream and into the pot. Likewise, the water in the bowl is also permitted, as the S"A in סימן צאד-ד *passkins* that תתאה גבר – the cold bottom plate cools down the stream and only כדי קליפה of the water becomes forbidden, which instantly mixes with the rest of the liquid and is permitted (see also פסקים ותשובות (צה-יד).

The (ש"ך) (ה) asks that the *Rama* here appears to contradict what he *passkined* in סעיף ב' In סעיף ב', the *Rama passkined* that one may intentionally place *parve* food, such as *gefilte fish*, cooked in a *fleishig* pot onto a dairy plate and vice versa (as discussed earlier in the *zman*), while here, he writes that the plate must be *kashered*. The (ש"ך) answers that there is a difference between liquid and solids. Regarding solids, the moment the *parve* food leaves the *fleishig* pot and is disconnected from the meat flavor in the pot, it becomes נ"ט בר נ"ט and may be placed on dairy dishes (the *gefilte fish* case). However, liquid poured directly from a *fleishig* pot (without a ladle)<sup>9</sup> is considered still connected to the pot, and the absorbed flavor is not fully weakened.

Therefore, when the stream hits the dairy bowl, it renders the bowl forbidden.

The (ש"ך) argues on this *chumra* of the *Rama* and *passkins* that just like you may place *parve* solids on the opposite plate because the flavor in the food is נ"ט בר נ"ט, so too you may pour liquid into the opposite bowl because the moment the liquid leaves the pot, it is considered נ"ט בר נ"ט.<sup>10</sup> He writes that even the *Rama* in his *sefer* (יב) תורת חטאת was *meikel*, but added that "it

<sup>7</sup> See בדה"ש (סח), who quotes some that are *machmir* in a *kli sheini*.

<sup>8</sup> The wording here is based on the (סק"י) (כרתי ופלתי), who *passkins* that the bottom plate is only forbidden if the stream was uninterrupted.

<sup>9</sup> If a ladle is used to take *parve* soup out of a *fleishig ben-yomo* pot, the soup becomes נ"ט בר נ"ט once it leaves the pot. However, if the ladle is also *fleishig* and *ben-yomo*, and sat in the pot for a while, it gets the status of a *kli rishon* and would forbid the dairy *ben-yomo* bowl.

<sup>10</sup> One should not *le'chatchilla* pour into the opposite utensil, but in a *be'dieved* situation (e.g., there are no other bowls) everything is permitted.

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seems the custom is not to be lenient.” *Lema’ase*, the 40) (מח-יג) **חכמת אדם** is lenient, but if there is no loss of money (to *kasher* the dish), one should be stringent as a *chumra* (additional stringency).<sup>11</sup>

- 6) If hot water from a *kli rishon* is poured onto dirty dairy and *fleishig* dishes, everything is permitted because *irui* (pouring of hot water) cannot extract flavor from food and transfer it to the opposite utensil. However, the **ש”ך** (כ) argues on the *Rama* and *passkins* that since **עירוי** **מבשל כדי קליפה** – pouring hot liquid cooks up to a **כדי קליפה**, the meat and dairy residue cooks and forbids the utensils. However, if both utensils are clean, everything is permitted. The **ש”ך**, as summarized in the **באר היטב** (ט), adds that if even if one *kli* is dirty, both are forbidden, unless there is *hefsed merubah*, in which case only the clean one is forbidden.<sup>12</sup> It should be noted that the **בדי השלחן** (עז) quotes the **חכמת אדם**, who is even more stringent than the **ש”ך** and forbids the dishes even if they are clean (if they are both *benei yoman*). The *passkins* בדה”ש follow this stringent opinion unless it is a situation of *hefsed merubah*, but it seems from Rav Moshe (41) below that he *passkins* like the **ש”ך**.
- 7) If you find a dairy dish or utensil in your *fleishig* drawer, it remains permitted. The **ט”ז** (יד) explains that even in a house in which dishes are normally washed in a *kli rishon*, it is still permitted because there is a **ספק ספיקא**: a *safek* whether the dishes were actually washed together, and even if they were, the dairy utensil may have been *eino ben-yomo* (and is permitted, as discussed in the first *halacha* of the *Rama* above).

In order to apply everything we have learned to our modern-day kitchens, we will briefly summarize the points first and then discuss practical applications in the next section.

- Placing a clean, *fleishig ben-yomo* ladle or dishes into a hot, clean *ben-yomo* dairy pot (and vice versa), or placing clean dairy and *fleishig ben-yomo* dishes together in a *parve kli rishon* filled with hot water:
  - S”A – everything is permitted because of **נ”ט בר נ”ט**.
  - *Rama* – everything is prohibited because **נ”ט בר נ”ט** does not apply for one of two reasons:
    - The opposite plates touch and flavor transfers directly without weakening.
    - The flavors meet in the water before weakening (since they are connected to the source of the absorbed flavor).
- Pouring hot water (or *parve* liquid) from a *fleishig ben-yomo* pot onto a clean, dairy *ben-yomo* plate:
  - **Rama** – forbids (only) the bottom dairy plate because the stream remains connected to the pot, which continuously emits strong *fleishig* flavor in the water.

<sup>11</sup> The **חכמת אדם** adds that the above is only true concerning meat and milk, but if the pot absorbed non-kosher flavor, the bowl certainly becomes forbidden, as **נ”ט בר נ”ט** applies only to *basar b’chalav*.

<sup>12</sup> When one *kli* is dirty and the other clean, the clean one is certainly forbidden because it received flavor from the opposite food, but it is questionable whether the dirty one will become forbidden. The reason is because in order to forbid the dirty dish, the clean dish needs to first become forbidden (i.e., when it absorbed the opposite flavor from the food) and once it becomes forbidden, it is questionable whether it still has enough power to infuse that forbidden flavor into the dirty utensil. *Lema’ase*, the **ש”ך** *passkins* that it is best to forbid both, unless there is **הפסד** **מרובה**, in which case we are lenient not to forbid the dirty one, but the clean one is still forbidden.

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- נ"ט בר נ"ט – permitted, because once the liquid leaves the pot, it becomes נ"ט. *Lema'ase* the חכ"א is lenient, but if there is no loss of money, one should be *machmir* to follow the *Rama*.
- The *Rama* is lenient in the following cases:
  - If a dairy dish is placed into a *fleishig* pot filled with hot water (and vice versa) or both are placed in a *parve* vat of hot water, one dish is *eino ben-yomo*, and both are clean, everything is permitted because there is never a fusion of strong meat and dairy flavors (though the water should be thrown out).
  - If clean dishes of opposite types are rinsed consecutively in the same pot of hot water, they are permitted, even if both are *benei-yoman*, because the water becomes נ"ט בר נ"ט as soon as one dish is removed, which cannot forbid the other.
  - If the dishes were washed together in a *kli sheini*, even if the dishes were dirty, they are permitted.
  - If hot water from a *kli rishon* is poured on dirty *fleishig* and dairy dishes, everything is permitted.
    - The ש"ך argues that if the dishes are dirty (and even just one), they are both forbidden (but in a שעת הדחק when only one is dirty, we are lenient to permit the dirty one).
  - If you find a clean *fleishig* utensil in the dairy drawer, it is permitted.

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### G. Washing Dishes – Practical Applications

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In this section, we will take what we learned in the previous section and apply it to our modern-day kitchens.

#### Placing a dairy ladle in a hot *fleishig* pot that contains *parve* soup (and vice versa)

The S"A permits in this case because the meat and dairy flavors in the soup are נ"ט בר נ"ט. The *Rama* forbids the soup, pot, and ladle only if the pot and ladle are both *benei-yoman*.<sup>13</sup> According to the *Rama*, this is not a situation of נ"ט בר נ"ט either because the ladle touches the pot or because the flavors are not yet weakened in the *parve* soup (since they are connected to their source of flavor). If either the pot or the ladle is *eino ben yomo*, everything is permitted.<sup>14</sup>

#### Pouring *parve* soup from a *fleishig* pot into a dairy bowl

If the pot and bowl are *benei-yoman*, the *Rama* forbids the bowl if there is a continuous stream from the pot to the bowl, but the soup is permitted because the bottom dairy bowl is cold and we invoke גבר, תתאה גבר, as explained above (in *halacha* #5 of the *Rama*).

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<sup>13</sup> This is true assuming there is not *shishim* in the water.

<sup>14</sup> However, as mentioned in footnote #5 above, there is a *chumra* to eat the food in dishes of the same status (i.e. dairy/*fleishig*) as the *ben-yomo* dish and *kasher* the *eino ben-yomo* dish.

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If a *fleishig eino ben-yomo* ladle is used, everything is permitted because the moment the ladle leaves the pot, the soup is no longer connected to the source of the flavor (i.e., the pot) and then becomes *נ"ט בר נ"ט*.

If the ladle was *fleishig* and *ben-yomo*, the *halacha* would depend on whether the ladle sat in the pot for a while (see *ט"ז סימן צב (ל)*). If it did, the ladle attains the status of a *kli rishon*, and when the ladle is removed from the pot, the soup is still considered connected to the source of the flavor (now the ladle) and would forbid the bowl. However, if the ladle did not sit in the pot (and thus does not have the status of a *kli rishon*), but was used quickly to pour out the soup, it has the status of a *kli sheini*, whose contents cannot forbid the bowl.

*Lema'ase*, the *ש"ך* argues on the *Rama* and always permits the bowl (even when the soup is poured directly from the *fleishig ben-yomo* pot into the dairy bowl) because the stream is considered disconnected from the pot, thereby giving it the status of *נ"ט בר נ"ט*. Nevertheless, the *חכמת אדם* adds that if there is no financial loss, one should follow the *Rama* as a *chumra*.

### Clogged sink and opposite utensil falls in

Often, when washing dishes — especially after large meals — the *fleishig* sink temporarily clogs due to food particles blocking the strainer, causing the sink to fill with water mixed with meat residue. What is the *halacha* if a dairy utensil falls into such a sink? The answer is that even if the temperature of the water in the sink is hot, the dairy utensil is permitted, even if it is dirty with dairy residue, because the sink has the status of a *kli sheini* (#4 above; see also *צה-כו (אהל יעקב)*). However, one should be careful not to rinse the utensil with hot water after removing it from the sink, because there is likely a thin layer of *fleishig* fat residue on it, and the hot water may forbid the utensil (as *irui kli rishon*, as will be described in the next subsection).

### Washing dishes in one sink

Until recently, most homes had only a single sink, and even today, some homes still have only one. Furthermore, when traveling and renting an Airbnb, you often get a home with one sink. What is the proper way to wash dishes in this case? If the water used does not reach the temperature of *yad soledes bo*, the question does not even begin, and everything is certainly permitted. The question is relevant when *yad soledes bo* water is used to wash dishes, as is very common, especially for those who wash dishes with gloves.

We learned above that according to the *Rama* (#6 above), hot water poured from a *kli rishon* onto dirty *fleishig* and *milchig* dishes does not forbid either of the dishes. If so, one could wash dirty *fleishig* and dairy dishes in the same sink. However, the *ש"ך* argued that *irui* from a *kli rishon* has the ability to cook and can forbid both dishes, and the *חכמת אדם* forbade even if both sets of dishes are clean. **Rav Moshe** in 41 (*אגרו"מ (יו"ד ח"א מב:ד)*) *passkins* like the *ש"ך* but clarifies that the *ש"ך* forbids only if the stream of hot water falls directly on both the *fleishig* and dairy dishes together. Therefore, the *ש"ך* would prohibit if both the *fleishig* and dairy utensils are on the surface of the sink bed touching one another and hot water is poured directly on both of them. But if the water first hits one and then flows on the sink bed before hitting the other, even the *ש"ך* agrees that it is permitted.<sup>15</sup>

<sup>15</sup> See *ש"ך (יח)* and the *פמ"ג נשפתי דעת (יח)*, who argue that as long as there is a continuous flow, all the dishes are forbidden. It seems that Rav Moshe is *passkin* like the *ש"ך*.

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The question we need to address is what is the status of our modern-day faucets? Do they have the status of *kli rishon*, whereby the water that comes out is considered *irui kli rishon*, or do they have the status of a *kli sheini* (because the hot water comes from the boiler and then travels through pipes), and even the ש"ך would agree that you may wash dirty *fleishig* and dairy dishes in one sink?

The 42) (פ"א-מז) **שמירת שבת כהלכתה** *passkins* that the boiler is clearly considered a *kli rishon*, since that is where the water is heated. Although pipes transfer the water from the boiler to the sink, the water that comes out is still considered *irui kli rishon* if it is *yad soledes bo* because it is connected to the boiler. The *Rama* in צב-ז סימן *passkins* that hot liquid that spills out of a *kli rishon* and travels on the counter is considered *irui kli rishon* if the stream is uninterrupted and connected to the *kli rishon*. Therefore, although the hot water travels through the pipes, since it is connected to the boiler, the stream is considered *irui kli rishon*.<sup>16</sup>

However, the 43) (ח"ב פ"ל-סק"ב) **אור לציון** *passkins*<sup>17</sup> that if the boiler is on the roof, the pipes below are considered a *kli sheini*, and the water that comes out is considered *irui kli sheini*. Therefore, according to the **אור לציון**, you would only need one sink, since the water that comes out of the faucet is considered *irui kli sheini*, which cannot forbid the dirty dishes inside. Nevertheless, it might still be advantageous to have two sinks, because if you drain boiling water from spaghetti onto dirty *fleishig* and dairy dishes in the sink, that is certainly considered *irui* from a *kli rishon*, which according to the ש"ך, forbids both *keilim*.

*Lema'ase*, Ashkenazi *posskim* rule that our faucets have the status of *irui kli rishon* and are *machmir* like the ש"ך that if the stream of *yad soledes bo* water touches dirty *fleishig* and dairy dishes directly, everything is forbidden. Therefore, to avoid potential mishaps, it is best to have two sinks, one for dairy and one for *fleishig*.

What should one do if he only has one sink? Until a few decades ago almost every Jewish home had only one sink. Rav Moshe, Rav Elyashiv, RSZA, and many other *posskim* had only one sink in their kitchens. How were the dishes washed in their house? One possibility is to never use *yad soledes bo* water, and there are companies today that can install heat gauges in the boiler that ensure the temperature of the water never exceeds *yad soledes bo*.<sup>18</sup> However, most people use hot water for washing dishes and often the temperature surpasses *yad soledes bo*. If so, what is the proper way to wash dishes with one sink?

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<sup>16</sup> According to Rav Moshe above, we will only forbid the dishes that come in direct contact with the stream of water flowing from the faucet, but not the dishes that come in contact with the water after it flows on the sink's surface. Why is this so? If the faucet is treated as *irui kli rishon* because it is connected to the original hot water source, we should also consider the water that comes in contact with the dishes after flowing on the sink's surface as *irui kli rishon*, since the flow is still connected to the boiler? One possible explanation is that, according to Rav Moshe, even if we are to consider the water emerging from the faucet as a *kli rishon* (since it is an uninterrupted stream from the boiler), we will not be *machmir* to also forbid the dishes that come in contact with the water after it makes contact with the sink bed, since the *Rama* permits even direct *irui* from a *kli rishon*.

<sup>17</sup> And in שו"ת ח"ג פ"י-יא

<sup>18</sup> *Yad soledes bo* is "the temperature at which the stomach of a baby would get burned"; see (גמרא שבת מ) and S'A או"ח שיח-יד. Rav Moshe in ע"ד-עד:בישול:ג. (או"ח ח"ד-עד:בישול:ג) writes that it is best to be *machmir* and assume it is 110 F (43 C), though in certain cases we can be lenient up to 160 F (71 C). RSZA quoted in (פ"א-א) (שש"כ) holds that the stringent temperature of *yad soledes bo* is 45 C (113 F).

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The 44) (מנחת יצחק (ח"ב-ק) *passkins* that ideally you should have two sinks, but if that is not possible, you should buy two bins, one for dairy and one for *fleishig*, and place them on a board above the sink bed. Additionally, in between each washing, you should rinse the sink with hot water and when washing the dishes, make sure the water goes into the bin and not the sink. The reason he is so *machmir* is because he *passkins* that the water from the faucet has a *din* stronger than a *kli rishon* since the water is directly connected to the boiler, which is still on the fire. Therefore, if particles of meat and dairy ever reach the sink bed and hot water was sprayed on them, the sink becomes *basar b'chalav*. To avoid the forbidden *basar b'chalav* flavor from being absorbed in the dishes, you need to place the bin on top of the board (avoiding direct contact with the sink) and rinse the sink in between uses.

**Rav Moshe** in 45) (י"ד ח"א-מב:ד) *passkins*, as mentioned above, that a sink only becomes *basar b'chalav* if *yad soledes bo* water falls directly on meat and milk together, or if the water first falls on meat and within 24 hours falls on dairy in the same location.<sup>19</sup> If the sink becomes forbidden in one of those ways and food particles from the dishes come in contact with it, those particles become forbidden and will forbid the dish.<sup>20</sup> Therefore, the custom is to place racks on the sink bed to prevent the dishes from touching the sink. Even if the sink becomes clogged and overflows the racks, it is still permitted because the water is only a *kli sheini*.

**Rav Belsky** in 46) (ח"א פכ"ב-יא) (שולחן הלוי) *passkins* that if you only have one sink, you should use separate tubs for meat and dairy, and separate racks do not suffice. He explains that often, small dishes (such as forks or spoons) fall in between the racks and the sink and come in contact with the sink bed, which may be dirty with meat and cheese residue. Additionally, the sink often gets clogged and fills with water mixed with meat and dairy residue above the level of the racks. Although the sink is a *kli sheini* and cannot forbid the dishes, each dish may have some meat and dairy residue, and rinsing under hot water will forbid the dish. Therefore, it is best to get two tubs, one for dairy and the other for *fleishig*.

The 47) (י"ד ח"ג עמ' תעד) (ילקוט יוסף) *passkins* that although the custom is to have two sinks, if you have only one, you may wash the dairy dishes and then *fleishig* dishes with hot water, without needing a tub or rack. He explains that even if the sink absorbs meat flavor (i.e., we assume that using the faucet is *irui kli rishon*), the *irui* is not strong enough to extract the absorbed meat flavor and transfer it into the dairy dishes. Additionally, the majority of the time, the water used in the sink is not *yad soledes bo*. However, when washing dairy dishes after meat dishes (or vice versa), you should be careful that there is no meat residue left in the sink.<sup>21</sup>

To summarize, *Sephardim* allow washing dairy dishes and then meat dishes in the same sink, because perhaps the water coming from the faucet has the status of a *kli sheini* (אור לציון), and even if it is treated as *irui kli rishon*, the absorbed flavor in the sink cannot go into the dishes through *irui* alone if the sink is clean (ילקוט יוסף). Nevertheless, *Sephardic posskim* agree that the Jewish people are holy and have taken upon themselves the custom of having two sinks.

<sup>19</sup> Since *irui kli rishon* only cooks a כד קליפה, if the water fell on meat in one part of the sink and then on dairy in another part of the sink, the sink does not become forbidden. Rather, those sections alone become *fleishig* and dairy, respectively.

<sup>20</sup> If the sink and utensil are clean, everything is permitted because even the ש"ך agrees that *irui* does not have the power to take flavor from one utensil and place it in the other.

<sup>21</sup> We will learn below that there might be another reason to be lenient, the fact that soap is used.

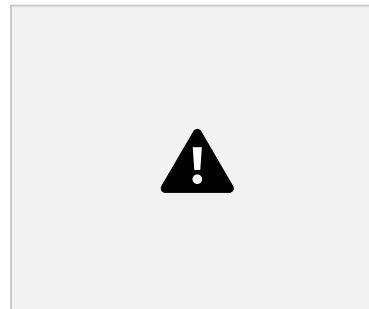


## Shiur #4: Washing Dishes

*Ashkenazim* should ideally have two sinks, but those with only one should preferably have two tubs (מנחת יצחק and Rav Belsky), though even separate racks may suffice (according to Rav Moshe).

### Connected double sink

Many double sinks today are made from one metal piece that is separated by a partition. In such sinks, does meat flavor from the *fleishig* side travel to the dairy side, forbidding everything? Are our connected double sinks considered one sink?



The 48) (פ"א-יד) **ספר הכשרות** *passkins* that it is best *le'chatchilla* to ensure a double sink is not connected, because the S"A in קכ"א-ו *passkins* חם מקצתו חם – if part of a *kli* touches hot forbidden food, the entire *kli* becomes forbidden, and you need to *kasher* the entire *kli*. Therefore, if you pour hot soup on the *fleishig* side of a double sink, the *fleishig* flavor will spread to the dairy side, and if you then pour hot dairy soup in the dairy sink, the dairy flavor forbids the sink. However, he points out in a footnote that *be'dieved*, if the other sink does not get hot, the sink is permitted. Additionally, the *Rama* there and in צד-א argues (as explained by the טז) (גר"א) that we do not say חם מקצתו חם כולו.

*Lema'ase*, none of the *posskim* are stringent for this. **Rav Moshe** in 49) (י"ד ח"א-מב:ד) *passkins* that *irui* (i.e., water from the faucet) only cooks a קליפה in the exact area it touches and does not spread to the rest of the sink. Therefore, both in a single sink and a double sink, there is no transfer of flavor beyond the area on which the food fell. Furthermore, the **באר משה**, quoted in בנה ביתך (50) (עמ' סח), *passkins* that the sinks are viewed as two separate sinks since there is an airspace between them (i.e., they are only connected on top – see image), and "it is best not to go looking for *chumros* of this nature." Rav Forst (p. 236) also writes: "...it presents no kashrus problem. The metal ridge connecting the two sinks never heats to the degree of *yad soledes bo*. Thus, no taste can be transferred between the two sinks."



### *Lema'ase* – what to do when you accidentally wash dirty meat and dairy dishes together?

What should you do if you accidentally washed meat and dairy dishes together under the faucet and both utensils were dirty?<sup>22</sup> In many common situations, there are a few reasons to be lenient and not require *kashering*:

- 1) Maybe the water was not *yad soledes bo*.
- 2) Maybe the faucet has the status of *irui kli sheini* (like the *אור לציון* *passkins*).
- 3) Even if the faucet has the status of *irui kli rishon*, the *Rama* holds that *irui* from a *kli rishon* on dirty dishes cannot forbid the dishes (*halacha* #6 – though ש"ך argues).
- 4) Soap (if used) serves to be *pogem* the flavor in the dishes (as will be explained in the next section).
- 5) **Rav Moshe** in 51) (י"ד ח"ג-יג) *אגרו"מ* writes that even if faucets are considered *irui kli rishon* (because they are connected to the boiler), if you also opened the cold water, the water leaving the faucet certainly has the status of a *kli sheini*. He explains that when you place hot water from an urn into a *kli sheini*, although the water is still boiling hot, *halachically* the water cannot cook

<sup>22</sup> If the dishes were clean, everyone agrees they are permitted.

## Shiur #4: Washing Dishes

because it begins to cool down from the cold walls of the *kli sheini*. Thus, when hot water is mixed with cold water, even if the water is still *yad soledes bo*, the cold water cools down the hot water, and the water from the faucet no longer has the status of a *kli rishon*.

Nonetheless, it is still best to have two sinks because not all of the above reasons apply in every case, and not all of them are *le'chatchilla*.

### Separate sponges

The 52) (צה-לד) אהל יעקב *passkins* that one should be careful to set aside separate sponges for dairy, *fleishig*, and *parve* due to possible food remnants in the sponge. He adds that the same applies to having separate pairs of dishwashing gloves for dairy, *fleishig* and *parve*. What is the *halacha* in the very common situation of accidentally using the *fleishig* sponge for dirty dairy dishes or vice versa?

In a footnote, the אהל יעקב explains that the sponge should be properly cleaned before being reused, but the dishes are permitted by combining multiple factors: 1) The water being used to wash the dishes was most likely not *yad soledes bo*. 2) Even if the water was *yad soledes bo*, maybe the sponge was clean and had no food remnants on it. 3) Even if it was dirty, that small amount was *batel b'shishim* with the flow of the water. 4) The soap may have been *pogem* the food in the sponge (as will be discussed in the next section), as well as the other factors mentioned in the previous subsection.

### Finding a dairy spoon in *fleishig* drawer and vice versa

As mentioned above, the *Rama passkins* that if you find a dairy utensil in a *fleishig* drawer, it is permitted due to a ספק ספיקא – maybe the dishes were not washed together, and even if they were, maybe the dairy utensil was *eino ben-yomo*. As mentioned in the previous two subsections, today we are lenient even when you are certain the dairy spoon was washed with *fleishig* dishes, and certainly when it was found in a *fleishig* drawer, since there is a chance that it was properly washed with dairy dishes and accidentally placed there (see also בדי השלחן (פ)).